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CONSTITUTIONALISM: A PRELIMINARY DISCUSSION*

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In the 19th century what was meant by the term "constitution" was reasonably definite and clear. Paradoxically enough, if the word retained some ambiguity, this was because of the British constitution; that is, because the mother country of modern constitutionalism appeared to have an obscure constitution, or even—according to some of the standards that seemed very important elsewhere—no constitution at all.

I

Yet the very term "constitution" has acquired its modern meaning in English, in the course of the evolution of the English legal terminology. The Latin term *constitutio* meant the very opposite of what is now understood by "constitution." A *constitutio* was an enactment; later, after the 2d century, the plural form *constitutiones* came to mean a collection of laws enacted by the Sovereign; and subsequently the Church, too, adopted the term for canonical law. The terms *constitutio* and *constitutiones* were not frequently used, however, by the English medieval glossators (while frequently used, as a synonym for *lex* and *edictum*, by the Italian ones). This explains why, in the course of time, the word constitution became a "vacant term"—*i.e.*, a term available for a new employment—in English (this does not necessarily mean in England), and not in those languages which had retained the Roman legal terminology.

For terminological reasons also, then, we have to refer to an English meaning of the word constitution,[1] although the United Kingdom has a difficult and *sui generis* constitution, deriving from a tortuous sedimentation of common law, acts and conventional usage, partly legal and partly extra-legal, and despite the fact that, when one reads the British constitutional lawyers, one is often reminded of what was said in a review of Stirling's book, *The Secret of Hegel:* "never has a secret been better kept."

For one thing, English constitutional lawyers appear to take a particular pleasure in pointing out to foreign jurists and political thinkers (beginning with Montesquieu) that their understanding of the English system is quite wrong. To be sure, this has been and still is very often the case. But one remains with a feeling that the British find a special gratification in confounding alien scholars: there is an element of polemic coquetry in the emphasis they lay on the principle of the supremacy of Parliament (exhibited as being unlimited, arbitrary, omnipotent, *supra* and *contra legem*, etc.); in the somewhat provocative and bold statement that, according to the American and French meaning of the term, the United Kingdom does not have a constitution,[2] in the point that the British system is based not on the "division" but on the "fusion" of powers;[3] or in the way in which Sir Ivor Jennings puts forward that, "Since Great Britain has no written constitution, there is no special protection for 'fundamental rights'."[4] And one could quote at length.

All these statements are, to be sure, true. But they are "literally true," and one is brought to wonder why the emphasis is laid on the *letter* so much more than on the *spirit* of the law of the constitution. After all, constitutionalism has a prescriptive purpose; whereas English scholars appear more inclined to address themselves to an MP by saying "you could" rather than "you cannot."

Let us take, for instance, the principle of the supremacy of Parliament. Would it be far from the mark to say that if the principle is related to the historical circumstances of its establishment, it hardly carries with it the dangerous implications that British scholars somewhat proudly expound?[5] Parliament, in the English terminology, means the King, the Lords and

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[1] Despite Jellinek's contrary opinion. According to Jellinek, "constitution" derives from the Latin phrase *rem publicam constituere. Cf. Allgemeine Staatslehre* (Berlin, 1914, 3d ed.), vol. III, ch. iv. However, no historical continuity appears to exist between *constituere* and "constitution" (see *infra* notes 21, 25), and this derivation is bound to give us a misleading start.

[2] *Cf., e.g.*, K. C. Wheare, *Modern Constitutions* (London, Oxford University Press, 1960), p. 21.

[3] *Cf., e.g.*, W. Bagehot, *The English Constitution*, ch. ii.

[4] *The Law and the Constitution*, 5th ed. (London, University of London Press, 1959), p. 40.

[5] Bagehot is no exception when he asserts that "a new House of Commons can *despotically* . . . resolve" [my italics]. *Op. cit.*, ch. vii.

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the Commons acting together as the supreme governing body of the realm. Thus, if the principle of the supremacy of Parliament is translated into continental terminology, it amounts to what is otherwise called the "sovereignty of the State." Historically speaking, moreover, the principle of the supremacy of Parliament is the counterpart of the principle of the supremacy of the Crown, and what it really meant when it was affirmed was that the King had no power *outside* of Parliament, that his prerogatives could only be exercised according to the formula of the King *in* Parliament. If this be so, would it be very wrong to conclude, despite the contrary opinion of British scholars, that parliamentary sovereignty in England actually contradicts the idea of a "higher law" no more than any flexible constitution does, and that the conventions of the constitution hardly allow a parliamentary majority to pass *any* law whatever?[6] (The point being the "any." Let us remember that the difference between accepted political behavior and wicked Machiavellian politics is rendered by the difference between the sentence, "The end justifies the means," and "The end justifies *any* mean.")

Probably I shall be told that I am wrong. However, as I was trying recently to sort out the juridical features of present-day dictatorial systems, it occurred to me that some English constitutional textbooks would be of great help. "No higher law and limitless legislative power," "fusion of powers," "no special protection for fundamental rights," etc.—all these principles applied very nicely to dictatorships. What is more, the very definition given in Wheare's textbook, "The British constitution is the collection of legal rules and nonlegal rules which govern the government in Britain,"[7] appeared to be—but for the terms, "British" and "Britain"—the most fitted to describe dictatorial constitutions. (For "rules" applies to any kind of rule—including the rule of rulership—and the specification "non-legal rules" just gives the final touch of perfection to the concept of unchecked, uncontrolled and absolute exercise of power.) I have not made the experiment the other way around, that is, using the apologetic writings on dictatorial constitutions in order to get highlights on the virtues of the English one: but my guess is that, again changing but one word (the geographic referent), the English constitution would come out in brighter colors following this procedure than it appears, *e.g.*, to the reader of Jennings' *The Law and the Constitution*.[8]

So, I may well be wrong. But something must be wrong too in the way in which many English scholars understate their constitution, seem to make a particular point of not being helpful, and leave the alien reader with the feeling that the British constitution really amounts to the fact that, in the final analysis, the British people are clever and fine people who know how to go about in politics. I am personally convinced of this. But allow me to repeat that this conclusion is not very helpful.

I have drawn attention to the British habit (and perhaps coquetry) of understatement, for unless this element is taken into account, one is likely to miss some important points. To begin with, this point: that, despite the English "mystery," in the 19th century, all over Europe as well as in the United States, a general agreement prevailed as to the basic meaning of the term "constitution." In 1830, and especially during the 1848 revolutions, it was very clear on both sides of the Channel what the people were asking for when they claimed a constitution.[9] If, in England, "constitution" meant the system of British liberties, *mutatis mutandis* the Europeans wanted exactly the same thing: a system of protected freedom for the individual, which—according to the American usage of the English vocabulary—they called a "constitutional system." Having to start from naught, people on the Continent (as was first achieved by the Americans) wanted a written document, a charter, which would firmly establish the overall supreme law of the land. The British too, however,

[6] This is to deny that there is a substantial difference between the British and the Continental principle of parliamentary sovereignty. If the term of reference is the American Congress then, of course, there is a good deal of difference.

[7] *Op. cit.*, p. 2.

[8] A comparison between Jennings' classic text and Vishinsky's *The Law of the Soviet State* (New York, 1951), would be to the point. According to Vishinsky, Stalin's Constitution draws "ever broader masses of the people into the government of the State," constantly strengthens "the bonds between the apparatus of authority and the people"; and Soviet constitutions in general "confirm genuinely democratic rights and freedoms," "establish and emphasize material guarantees," etc. (pp. 88–89).

[9] In 1860, the formula for the Italian plebiscites said only: "Do you want to enter the constitutional monarchy of King Victor Emanuel II?" Evidently, the mere adjective "constitutional" was assumed to be understood as implying all the difference.

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had, from time to time, relied on particularly solemn written documents: the Magna Charta, the Confirmation Acts, the 1610–1628 Petition of Rights, the Habeas Corpus Act of 1679, the Bill of Rights, the Act of Settlement, etc. The circumstance that these British "supreme laws" are not collected in a single document does not really mean that England has an unwritten constitution. I would rather say that the English do not have a codified constitution, *i.e.*, that Britain has a constitution which is written only in part (or, even better, unwritten to a much greater extent than "written" constitutions are), in a piecemeal fashion, and scattered in a variety of sources.

However that may be, and if it pleases the British to emphasize the fact that they have a constitution which is not written, this question is of secondary importance. I mean that the written, complete document is only a means. What really matters is the end, the *telos*. And the purpose, the *telos*, of English, American and European constitutionalism was, from the outset, identical. If the English vocabulary had not to this day refused to import the word (another paradox!), this common purpose could be expressed and synthesized by just one word: the French (and Italian) term *garantisme*.[10] In other terms, all over the Western area people requested, or cherished, "the constitution," because this term meant to them a fundamental law, or a fundamental set of principles, and a correlative institutional arrangement, which would restrict arbitrary power and ensure a "limited government." And during the whole of the 19th century and until World War I, "constitutions" remained, in the United States, in England, and in Europe, different means (technically speaking) which had nevertheless the same common purpose in view. That is, for almost 150 years "constitution" has been —on the whole—an unambiguous term.

II

In the 20th century, in the few decades following the first World War, this situation of over-all basic agreement has come to an end rapidly and radically. So rapidly and so radically that one must wonder why. The main reason (or, we might say, the specific agent of change) has been, I believe, the following: that legal terminology—to the extent that it affects what Rousseau would have called *droit politique*, political right—shares the same destiny as political terminology in general: that is, it tends to be abused and corrupted. And this is all the more the case in a time in which politicians have become ever more conscious of the "power of words."

In our minds, constitution is a "good word." It has favorable emotive properties, like freedom, justice or democracy. Therefore, the word is retained, or adopted, even when the association between the utterance "constitution" and the behavioral response that it elicits (*e.g.*, "The constitution must be praised, for it protects my liberties") becomes entirely baseless. More precisely, the political exploitation and manipulation of language takes advantage of the fact that the emotive properties of a word survive—at times for a surprisingly long time—despite the fact that what the word denotes, *i.e.*, the "thing," comes to be a completely different thing.[11]

To be sure, the agent of change has not only been insincerity and the political debasement of language. For technical reasons of their own, jurists too have been gradually covering up the *garantiste* feature of "constitution." This technicojuridical explanation cannot be pushed too far, however. It is quite true that Continental constitutional lawyers have never been at ease when confronted with the problem of putting forward the "strictly juridical" point of view. On the other hand, the fact remains that, more or less until the 1920's, they managed to combine the requirements of "pure law" with the *telos* of constitutionalism. If one reads, for instance, the *Leçons* of a representative figure of the pre-1848 period, Pellegrino Rossi,[12] one

[10] Of course the query, "What do the guarantees include?" (*e.g.*, a certain technique of allocation of power, a bill of rights, the rule of law, judicial review, etc.) receives different, complex and changing answers. This is all the more reason for adopting a general term, reminding us both of the goal, and particularly of the fact that unless we think that *somebody needs protection against somebody else*, there is no point in being concerned with constitutionalism.

[11] The extent to which political terminology is subject to this kind of abuse can be exemplified by the very term "politics." In the Middle Ages the expression *dominium politicum* meant (in contrast to *dominium regale*) government deriving from, or given consent by, the people (*i.e.*, by the *polites*, the inhabitant of the *polis*). That is to say that *politicum*, or *police* (in French), was coined—having reference to the Greek root—as a good word. Nowadays this originally pleasant word denotes the most unpleasant reality of politics: those who are entitled to arrest us. Let us hope that "constitution" may not have a similar destiny.

[12] Pellegrino Rossi (1787–1848) was professor of law in Bologna in 1814, the framer of the

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finds both the statement that "every State has a constitution" (*ex hypothesis*), and the statement that "a constitution is the law of the free countries." Let us face it: the two statements are not consistent. Nevertheless they introduce and represent an approach which received wide acceptance in the European juridical literature for almost a century. It is interesting to realize, therefore, why the Continental constitutional lawyers took this approach, and how they found a way of giving consistency to an inconsistency.

Descriptively speaking, and having reference, *e.g.*, to the terminology of the Constitution of Pennsylvania of September 28, 1776, a constitution contains two basic elements: a "plan (or frame) of government," and a "bill of rights." For the framers of the 18th century charters it was self-evident that the two component parts could not be separated: both were needed for a constitution to be a constitution. They did not mean in the least that *any* plan of government amounted to a constitution: they meant that this was the case only when a frame of government provided for a bill of rights and the institutional devices that would secure its observance. Continental jurists, however, were anxious to put their rationalistically trained juridical consciences at ease by finding a "universal" definition of constitution. And for this purpose they found it expedient to separate the universal trait (the "plan of government" meaning) from the *garantiste* component. Therefore, often enough, they did come to say—*qua* pure jurists—that any "frame of government" amounted to a constitution. They said it, but—let me stress this point—they immediately denied it. For they went on to say that "it had become customary"[13] to use the term constitution in a more specific *garantiste* sense; and therefore that, according to this practice, it was improper to hold that every state was a constitutional state. *Every* state had a "constitution," but only *some* states were "constitutional."

Unquestionably, the distinction is very thin; and moreover it is hard to explain why the phrase, "It has become customary," should have been accepted by jurists as a juridical argument. The interesting fact is therefore that they did accept it. And they accepted it—among other reasons—because they fully realized that their "universal" definition had no denotative value: it indicated *everything*, not *something*. Thus, generation after generation, European public law went ahead riding simultaneously two horses: the constitution as any "State order," and constitutionalism as a specific "content" of guarantees.

It was an uneasy equilibrium, I grant. It made them vulnerable, exposed. But one can have an Achilles heel and nevertheless survive. So, despite this weakness, I believe my former assertions still hold good, namely: (i) that for almost 150 years "constitution" has been associated with *garantisme;* and (ii) that the primary agent of change cannot be located in the inner logic of development of the European juristic tradition. Continental constitutional lawyers were hardly in a position to resist change; but they did not start the change. What started the new trend was the impact of the political atmosphere of the 1920's. For a new look about politics was taking shape in those years. "Feeble politics," so to speak, was giving way to "intense politics"; that is, the peaceful-legalitarian approach to political relationships was giving way to a warlike view of politics.

I have said "political atmosphere." It is fair to add that in some countries it was not only a question of atmosphere. In Italy, and in the 1930's in Germany, jurists were somehow compelled to adopt a merely formal, "organizational," neutral definition of constitution. This is not surprising, and Italian and German constitutional lawyers can hardly be blamed for this. What is surprising is that in the meantime the British, too, had come to adopt very much the same position.

Let me refer again to Wheare's definition, according to which the English constitution is "the collection of legal rules and non-legal rules which govern the government in Britain." Or allow me to quote, as another instance, Jennings' definition, according to which a constitution is "the document in which are set out the rules governing the composition, powers and methods of operation of the main institutions of government."[14] The peculiar feature of these definitions is not only the unspecified use of the term rule (even games have "rules": are they the same kind of rules?), but the silence which covers the *telos* of constitutionalism. Actually they are purely "formal" definitions, in the sense that they can be filled with any content whatever. We are thus faced,

1832 project of reform of the Swiss constitution, and subsequently a celebrated professor of constitutional law at the *Collège de France* in Paris.

[13] The wording varies, but this was, in substance, the invariable gist of their argument.

[14] Or, where no such document exists, simply "the rules determining the creation and operation of governmental institutions." *The Law and the Constitution*, pp. 33, 36.

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nowadays, with this puzzling situation: that the very inventors of the constitutional solution provide us with a definition which amounts to saying that any instrument of government, any "traffic rule," is a constitution. And this according to the most authoritative yardstick. It is not astonishing, therefore, if the Continental theory of constitutionalism has shown, since World War II, very little evidence of recovery. For whenever somebody claims that "constitutional dictatorships" have proved that *garantisme* remains the core of constitutionalism, one is likely to be confronted with this reply: why should we be concerned with this problem more than the English?

My reply is—and this is the second point that I wish to stress, having reference to the English habit of understatement—that one must be very careful about importing the British constitutional textbooks. They have not been written for export. They have been written for a happy people whose constitutional system is liable to work nicely anyhow. If the alien scholar does not make explicit what often remains implicit, and does not say what is often left unsaid, the British case easily lends itself to bearing false witness.[15] Of course, English liberties remain protected even if English constitutionalists forget to mention that this is why Britain has a constitution. But the case might be very different elsewhere.

III

The foregoing *mise au point* has a bearing on what will follow, but it certainly does not alter the fact that nowadays "constitution" has become an ambiguous term, covering two very different meanings: a strict, substantive meaning (the *garantiste* meaning), and a formal, cosmic meaning. It follows from this that whereas in the 19th century a question such as, "What is the role of a constitution in a political system?", could be answered without asking first, "What is a constitution?", this is no longer the case.

It is equally clear—at least to me—that if a constitution is defined as "any way of giving form to any State whatever," then the question "What is the role of a constitution in a political system?" either cannot be answered, or can be answered only country by country, and even then in a very uninteresting and banal way. For in this case the answer is that the constitution plays no role, properly speaking: It is only a shorthand report which may describe—assuming that the constitution in question is applied—the formalization of the power structure of the given country. (This is not to deny that the conclusion, "The constitution plays no role," may not be reached also after applying the standards of the *garantiste* type of constitution. I am simply pointing out that the query is relevant only if we consider the constitutions which are supposed to play a role.)

On both accounts, then, we have to make up our minds and to look for a convincing answer to the question, "What is a constitution?".

In the first place, we may say: "This is what I understand when I use this term." This kind of answer, however, leaves untouched a very basic point, namely: What is the truth-value of this definition? Is it only a "stipulative definition"?

Therefore, and in the second place, we may also find it necessary to say: "The term constitution *ought* to be used in this way."

In the third place, we may have recourse to a classification. We may say: given the fact that we are now using the term constitution in very different meanings and to cover altogether different referents, then let us speak specifically of this and that type of constitution.

These three lines of approach are not mutually exclusive. The contrary is true. But in most cases political scientists either follow solution number one, or solution number three, or both. At any rate, they usually bypass step number two, that is, they usually refrain from saying that the term constitution *ought* to mean this and not that. I wonder, however, whether the "ought" can really be avoided.

When general agreement prevails—as was the case with "constitution" in the 19th century—"ought-propositions" (if I may call them so) are superfluous. In this case one need not discuss whether a definition of "constitution" is merely a private convention of the stipulator (*i.e.*, a stipulative definition), or a lexical kind of definition,[16] or something more, *i.e.*, a definition having warranted truth-value. Agreement automatically settles all these problems. But we live in a world—let me stress—

[15] Or else to bear no witness. Thus in F. A. Hayek's *The Constitution of Liberty* (London, Routledge, 1960), the 12th chapter bears the title: "The American Contribution: Constitutionalism." To be sure, Americans have made an outstanding contribution to constitutionalism. But to say more than this is saying too much, even though Hayek's conclusion is hardly surprising if one is not cautioned against the British mood of understatement.

[16] See R. Robinson, *Definition* (Oxford, 1954), pp. 35–92. For an application of these criteria, see M. Cranston, *Freedom—A New Analysis* (London, 1953).

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of terminological cleavage in which the "war of words" plays a very important role. Our first reaction has therefore been to make some fine distinctions (*e.g.*, the one between stipulative and lexicographic definitions), and to have recourse to a classification of the various meanings and referents of the word constitution.

On second thought, however, one is bound to discover that the stipulative approach is only a fire escape (and an unsafe one at that) which actually helps the fire to grow, and that classifications cannot, *per se*, solve our problems either. Classifications are only *prima facie* a neutral device. Classifications have a purpose in view, and differ according to their purpose. Therefore, classifications cannot replace definitions. They follow a definition of constitution, and imply that we have previously taken a stand *vis-à-vis* its nuclear meaning, so to speak. And this stand cannot be provided by the stipulative approach.

According to this approach, the speaker says: I propose to use the term constitution in this sense, and this is *my* definition of it. The emphasis is laid on the "my," for stipulations are an arbitrary choice. As Richard Robinson asserts in his valuable book "In stipulation we freely make any word mean anything we choose."[17] This is hardly a way out, however. Let us assume, for instance, that one meets with the following definition: a constitution is the will of the sovereign. In some cases one could hardly object that this definition is factually false. According both to the *Führerprinzip* and to actual practice, it would be quite realistic to say that during Hitler's decade the German constitution amounted to the will of the *Führer*. And Stalin's constitution can well be resumed in similar terms. As these extreme but very relevant examples go to show, if one wishes to retort that Hitler's or Stalin's regime was not a constitutional regime, this cannot be done on the ground that the sentence, "The Soviet constitution was the arbitrary will of Stalin," is factually false, but on the ground that one does not accept the meaning "will of the sovereign" as a permissible meaning of constitution: *i.e.*, because one refuses the definition.

Yet, if definitions are just arbitrary and private stipulations of each speaker, on what grounds may one discuss the definitions of constitution which differ from his own stipulation? Clearly, one can write a book of 500 pages to show that Hitler's or Stalin's so-called constitution amounted to a non-constitutional system; anybody can simply dismiss it by saying: This is your stipulation, but I have mine, and that is that. How easy, and how convenient!

I cannot develop here the criticism of the conventional approach.[18] In my view definitions are not private conventions of each speaker, but (whenever they have a historical referent) storehouses of past experience shaped by former practice. We bring them up to date, but their ultimate truth-value lies in the fact that they tell us how to behave *as experienced people* in matters regarding which each generation starts by having no experience. And this is precisely the reason why we are not condemned to a solipsistic conventionalism, and why we are entitled to discuss and to look for a "true definition" (touching on a basic meaning, of course) of equality, of liberty, of law, of constitution, etc. In particular, *the* definition of constitution which has objective worth is the one that appears to be the outcome of a long and painstaking process of trial-and-error concerned with the question: How can we be governed without being oppressed?

Implicitly I have already indicated why I attach a great importance to whether the sentence "This is the meaning of the term constitution" has a normative undertone or not. For if the speaker takes the view that his definition cannot be phrased as a normative proposition—*i.e.*, in the form, "This is also what 'constitution' ought to mean"—then, no matter how unwittingly, he is surrendering to the stipulative and conventionalistic approach.

To be sure, one may not be concerned with long-range consequences of this kind. Nevertheless, we must decide here and now the test, or the criteria, according to which we declare: This is the meaning given in this text to the word constitution. Now, are we going to ascertain what "constitution" means in the 20th century by asking the Russians, the Chinese, the Egyptians, and so forth, or by inquiring what the Italians and the Germans were taught to believe a constitutional system to be under Mussolini and Hitler? If so, then I grant that there is no "ought" about it. But otherwise (that is, if we do not believe that knowledge follows a majority principle), then the "ought" is inevitably there—no matter whether openly or not—for surely we are not speaking of what "constitution" actually means to all the people of the world in the 20th century, but of a correct meaning which we find advis-

[17] *Op. cit.*, p. 65.

[18] For my views on the truth-value of definitions, see G. Sartori, *Democratic Theory* (Detroit, Wayne Univ. Press, 1962), ch. 10.

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able to propose for future observance.

I am acquainted with the sophisticated methodological reasons that are being brought forward to explain why the form "ought" should be expelled from the realm of science, and in particular of political science. Yet, my guess is that future historians will find a much simpler explanation for our "ought complexes." They will say that we have been unable to meet the challenge of the environment; and rightly so, I believe. For since the beginning of time the people entrusted with the development of learning have followed this very simple rule: to use the form "is" when they agreed with general usage, and the form "ought" when they did not. Yet now we refrain from saying "This is what the term constitution *ought* to mean," even though we are well aware of the fact that "constitution" no longer bears a common acceptance and even though we are in a good position to realize that a situation of ambiguity and confusion is being deliberately fostered by political double-talk and insincerity, with the precise purpose of deceiving the audience.

Let there be no misunderstanding. I am not advocating a behavioral "ought," but a terminological and logical "ought."[19] The meaning of "constitution" is neither an arbitrary stipulation, nor something to be discovered in the "popular mind" of semi-literate majorities. At least, if we believe that rational discourse and an intelligible vocabulary are to be maintained, then the meaning of "constitution" has been decided by historical testing, and has to be ascertained by adequate information and sound thinking. And if these criteria bring us to a definition which no longer receives common acceptance, then it is not only right but necessary to say: This is what the term constitution *ought* to mean (for otherwise it is meaningless, or superfluous, or deceiving, or whatever). This does not imply that people are being requested to respond favorably to a certain pattern of constitution defined as the "true constitution." I am only saying that terminological clarity is a basic requirement for any science, and that political scientists in particular have to take stock of the fact that the vocabulary of politics tends to be used for the purpose of beguiling the listener. I am not advocating, therefore, the preferability of one type of constitutional *telos* in relation to another. I am simply saying that it is a scientific requirement to discuss whether it is proper to use "constitution" where, in order that the public (and even, at times, the expert) be not deceived, we should *not* use this term.

[19] The form "ought" is not necessarily related to ethical imperatives.

IV

The objection will be that even if we reject the stipulative approach, even then "constitution" is, by its own constitution, an ambiguous term.[20] That is, even if one agrees that constitutions have been shaped by historical experience in order to protect the freedom and the rights of the power addressees, the fact nonetheless remains that constitution has always been a Janus-faced concept, hovering as it were between the idea of "political order" on the one hand and of "limit" on the other. I would however disagree with this statement.

The history of the word in its modern meaning only begins in the 18th century.[21] Let us not confuse the noun with the concept, or, we might say, the Latin *constitutio* with our "constitution," a homonymy with a homology. In its present-day conceptualization, "constitution" only emerges, perhaps, with Bolingbroke,[22] and the term really gained ground and acquired a definite connotation only in America during the years 1776–1787. (The French did not receive it directly from England, but from the Philadelphia Convention. This is not surprising for it was Paine, not Burke and the English writers in general, who gave the first explicit, complete account of the modern concept.[23])

[20] I am no longer referring to the strictly juridical approach mentioned previously, but to the overall issue of constitutionalism as discussed in the history of political thought and in philosophy of law.

[21] Cicero's use, in *De Republica*, I, 45, 69, was quite casual, and left no trace in the following literature. Actually, this much-quoted Roman precedent cannot claim precedent status. This is so true that the 15th and 16th century commentators rendered Cicero's *constitutio* with the terms *status publicus* (Jean de Terre Rouge), *status Reipublicae* (Bodin), or *politicum* (Fortescue), *police* (Seyssell).

[22] I say "perhaps" on account of McIlwain's reservation: "Bolingbroke in fact is only restating views as old as the *Politicus* of Plato. . . . " *Constitutionalism: Ancient and Modern* (Ithaca, Cornell University Press, 1947), p. 3.

[23] On Paine see esp. C. H. McIlwain, *op. cit.*, pp. 8–10. In Burke "constitution" was used much more loosely as a synonym for "commonwealth" (*Thoughts on the Cause of Present Discontents*), for "engagement and pact of society" (*Reflections*), for "frame" and "pattern" (*Speech on Reform*); all in all, it meant the substantive principles deriving from the British political tradition

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Now, it is undeniable that the whole of the American tradition has understood "constitution" as a means for "limited government." The same is true, from the outset, for French constitutionalism (should one be reminded of article 16 of the Declaration of Rights of 1789? Or, for the following period, of Benjamin Constant?). And I have previously explained at length why I firmly hold—despite the possibility of exhibiting numberless quotations to the contrary effect—that English constitutionalism belongs entirely to the same tradition: the British advocate, and have advocated from the time of Glanville and Bracton, an "unlimited government" just as much, or, rather, just as little as the Americans.[24]

It is not unsafe to conclude, therefore, that, with the decline of the age of Absolutism, people began to cast about for a word which would denote the techniques to be used for controlling the exercise of State power. This term turned out to be (Americans decided this issue) "constitution."[25] And "constitution" was in no way born as a Janus-faced concept. The term was re-conceived, adopted and cherished not because it merely meant "political order," but because it meant much more, because it meant "political freedom." We may put it thus: because it denoted *the* distinctive political order which would protect their liberties; or—to paraphrase Friedrich's felicitous wording—because it not only "gave form" but also because it "limited" governmental action.[26]

The idea that this specific, *garantiste*, meaning derives from a pre-existing wide, unspecified meaning, is an optical illusion, which has been suggested—I believe—by the commentators and translators of Aristotle. As is well known, Aristotle's term was *politeía*, and, surely, *politeía* is difficult to translate. So occasionally, the authors having Plato's and especially Aristotle's writings in mind, found it expedient to render it by the term constitution. This, however, happened only occasionally (the relevant example is Montesquieu)[27] until the time when "constitution" acquired a specific meaning. It was only at this stage that "constitution" came to be used consistently as the proper equivalent of *politeía*. Wrongly, to be sure. For *politeía* only conveys the idea of the way in which a polity is patterned. And if Aristotle meant by *politeía* the ethico-political system as a whole, we cannot infer from this that "constitution" has in Aristotle a loose meaning. The only correct conclusion is that Aristotle has been mistranslated. For to us "constitution" means—a frame of political society, *organized through and by the law*, for the purpose of restraining arbitrary power. And surely nothing resembling this concept was in the mind of Aristotle.[28]

V

Having established the frame of reference (the historically valid "nuclear meaning" of constitution), we may now turn to the problem of how we should go about classifying the variety of present-day so-called constitutions. I shall deal swiftly with this problem, for I

and to be inferred from the working of the institutions.

[24] *Cf., e.g.*, Burke: "In [our] Constitution . . . I feel both that I am free, and that I am not free dangerously to myself and to others. I know that no power on earth, acting as I ought to do, can touch my life, my liberty, my own property" (*Speech on Reform of Representation.*) Let it be noted that, according to the letter of the constitution, in 1782 the doctrine of the omnipotence of Parliament was already established. Was Burke wrong, then? Or should we not question, instead, the validity—for a constitution largely based on conventions—of the "literal" approach?

[25] In this connection, recall that in the years of the Commonwealth and the Protectorate (1649–1660) the English made several attempts to establish a written constitution. However, they never called these documents "constitution": they made recourse to terms such as covenant, instrument, agreement, model, paramount or fundamental law.

[26] Carl J. Friedrich, *The Philosophy of Law in Historical Perspective* (University of Chicago Press, 1958), p. 220.

[27] In the famous ch. 6, Book XI of the *Esprit des Lois* the term *constitution* appears only in the title.

[28] I grant that there are a few passages in Aristotle's *Politics* in which the term *politeía* specifically refers to the way in which the *polis* magistracies are ordained. *Cf., e.g.*, 1278 b. However, this meaning appears in passing, and it cannot be denied, I believe, that (*i*) the ethico-political all-embracing meaning of *politeía* is by far the prevalent one, and, on the other hand, (*ii*) the term never appears in Aristotle in our juridical meaning, that is, in the sense of being an institutionalized way of controlling the dynamics of political freedom. Actually, I find it quite absurd to speak of a Greek "constitutionalism." Only the Romans indirectly tackled the problem, and only from the "rule of law" angle (as Jhering and Bryce have remarked), that is, very much in the same way in which—according to Dicey—the principles of the English constitution are inductions and generalizations resulting from judicial decisions determining the rights of private persons.

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agree very much (in substance, even though not in terminology) with the threefold classification suggested by Loewenstein.[29]

Basically we are confronted with three possibilities: (i) *garantiste* constitution (constitution, proper); (ii) nominal constitution; (iii) façade constitution (or fake constitution).

I call "nominal" the constitutions that Loewenstein labels "semantic" (a difficult, and perhaps not quite appropriate labelling). Apart from this semantic divergency, I entirely underwrite his description of the specimen: "The constitution is fully applied and activated, but its ontological reality is nothing but the formalization of the existing location of political power for the exclusive benefit of the actual power holders" (p. 149). Nominal constitutions are therefore "nominal" in the very simple sense that they bear the "name" constitution. This amounts to saying that nominal constitutions are merely organizational constitutions, *i.e.*, the collection of rules which organize but do not restrain the exercise of political power in a given polity.[30] Actually, nominal constitutions do not really pretend to be "real constitutions." They frankly describe a system of limitless, unchecked power. They are not a dead letter. It is only that this letter is irrelevant to the *telos* of constitutionalism.

The façade constitutions are different from the nominal ones in that they take the appearance of "true constitutions." What makes them untrue is that they are disregarded (at least in their essential *garantiste* features). Actually they are "trap-constitutions." As far as the techniques of liberty and the rights of the power addressees are concerned, they are a dead letter.

I suppose that the labeling "façade constitution" will be criticized on the ground that it implicitly rules out the possibility of an educational purpose. But I do not think that a fake constitution has an educational *purpose*. It *may* turn out that it has an educational *effect*. But this is a very different matter. We are not historians dealing with past events and looking for their *a posteriori* justification. We are concerned with actual will and actual doings. And to credit with an "educational role" the instances that make forecasts all the more dubious (as in the case when we are confronted with discretional power) is very much like toying with wishful thinking. Moreover, and in point of principle, education is not the purpose of constitutions. I mean, this is not a sufficient (or sufficiently pertinent) criterion for singling out a special class of "educational constitutions."[31] A constitution may contain, to be sure, statements of "aspiration," and thereby provide "incentives," even pedagogic incentives. However, this occurrence does not indicate an essential constitutional feature; it merely indicates a possible content of any type of constitution.

There is often a considerable overlapping between nominal and façade constitutions. The distinction is nevertheless basic, for the two cases are indeed very different. Nominal constitutions actually describe the working of the political system (they do not abide by the *telos* of constitutionalism, but they are sincere reports), while the façade constitutions give us no reliable information about the real governmental process. In most cases one can clearly perceive, despite the overlaps, which is the prevalent aspect: I mean, whether a constitution is basically nominal or basically a disguise. At any rate, or otherwise, the distinction is serviceable for analytical purposes, that is, for dissecting the component parts of a "mixed type" (partly nominal and partly fake) of pseudo-constitution.

The distinction is serviceable from another point of view as well, for it goes to show that if we refuse the *garantiste* qualification, then no line can be drawn between "constitution" and "constitutional government." To be sure, if a constitution is not applied, this is an instance of constitution without constitutional government. But this argument applies only to the façade constitutions. What about the other possibility? In the case of nominal constitutions we no longer have a "prerogative state" that replaces *de facto* the "legal state"; we have instead a prerogative state legitimized by the constitution. In this latter case, then, we are confronted with a government which, by definition, will always govern according to the constitution. On what grounds may we maintain that this is not a "constitutional government"? Certainly not on the grounds of logical syntax. Therefore, either we adhere to *garantisme*, or the distinction between constitution and constitutional government really becomes meaningless.

[29] *Cf.* Karl Loewenstein, *Political Power and the Governmental Process* (University of Chicago Press, 1957), esp. pp. 147 ff.

[30] It is often held that the mere ordering, the mere existence of a definite and stable "form," is in itself a "limit." This may well be—but not a *garantiste* kind of limit. Armies are usually well ordered, but this fact does not necessarily protect subordinates *vis-à-vis* their superiors.

[31] Car accidents may serve the purpose of improving our driving. Would this be a reason for creating the category "educational accidents"?

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Some troublesome problems arise when one focusses further attention on: (i) the *décalage* between the written and the living constitution, and on (ii) the frequent disregard of some of the constitutional provisions. In this connection the point can be made that a clear-cut distinction between real constitutions and façade constitutions is hardly realistic, since the real ones too come to differ widely, in practice, from their original formalization, or may not be fully activated (the former being usually the case with old constitutions, and the latter with recent ones).

Personally I am not dismayed by the first indictment. If a constitution is written, then, with the passing of time, the formal document and the living constitution inevitably come to be related much as the past is related to the present. (In this sense, then, written constitutions too become, in part, non-written.) However, as long as the spirit and the *telos* of the original document are maintained in the new circumstances, the *décalage* only affects the myth of a "fixed constitution"; and the American experience goes to show, if anything, that written constitutions can endure despite the anti-historical assumption upon which they have been conceived.

On the other hand, the remedy for this could hardly be found in a non-written constitution. The drawbacks and the dangers of this solution are so serious, that only the British can afford the luxury of not formalizing their constitution. And it remains questionable whether it is really true that the British constitution is unwritten. (I would be tempted to say that it is "written differently.")

The thorny point is instead the non-fulfillment of constitutional provisions not because of the time factor, because they have gradually become outdated, but with reference to norms that have never been activated owing to the unwillingness of the executive or of the legislative body to give them life. This problem cannot be dismissed lightly, if we consider that "delinquencies in the application" of the constitution (as Loewenstein calls them) are rather frequent in most countries. It is safe to ask: "Why?". Is it because the constitutional spirit (as well as the corresponding type of the constitutional gentleman) is withering away? Or is it because of other reasons?

It is well to remind ourselves that most countries have a recent constitution, either because they have re-written their previous charters, or because they have started anew. And contemporary constitutions are, as a rule, bad constitutions—technically speaking.[32] They have come to include unrealistic promises and glamorous professions of faith on the one hand, and numberless frivolous details on the other. Some of them are by now so "democratic" that either they are no longer constitutions (for a constitution limits the "will of the people" concept of democracy just as much as it limits the will of the power holders),[33] or they make the working of the machinery of government too cumbersome for government to work, or both. Under these conditions, non-application may well be a remedy for inapplicability. I mean by this that it may also serve the purpose of saving the constitutional system as a working system.

So we should not react dramatically in all cases, but only in those in which the disregard actually has a direct bearing on the withering away of the constitutional *telos*. This implies that we can no longer partake, in all instances, of the strict juristic view that "*all* the Constitution *must* be applied at whatever cost." Personally speaking at least, I take the view that we should always ascertain whether the non-application affects the machinery of government in its *garantiste* aspect and the basic purposes of constitutionalism, or not. In the former case it is proper to speak of "delinquencies"; in the latter I confess that I remain quite indifferent. And if we follow this rule of thumb, the difference between "real constitutions" and "façade constitutions" remains very firm, despite the fact that even in the context of the real constitutions a number of provisions may not be activated.

VI

Summing up my line of argument, I have tentatively submitted the following theses:

(1) That the word constitution has been re-conceptualized, if I may say so, for a specific purpose, and more precisely to denote a distinctive and unprecedented "technique of liberty" (as Mirkine-Guetzévitch would have said), the

[32] Contemporary constitutions are being said to improve on the former ones in that they are no longer "negative" but "positive." If positive means that they are also an instrument for social and economic policy then let us be happy with this positive development. Under one condition, however: that the follow-up, *i.e.*, the "economic" tail, should not eat the "political" head.

[33] Among other reasons, because a constitution cannot effectively limit the will of the power holders if they can outflank constitutional impediments by making direct appeals to the will of the people.

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features of which had already materialized clearly enough when, for instance, Montesquieu was visiting England in 1730.

(2) That this purpose has often been obscured by the complexity of the original model (the English constitution) on the one hand, and by a somewhat polemic isolationism of the British scholars on the other hand. Despite these unfortunate circumstances, however, the fact remains that the idea of limit is basic to the English prototype just as much as to the American and the French subsequent models.

(3) That the view that the *garantiste* meaning of "constitution" was preceded by a loose, formal meaning lacks historical proof, for this view actually goes back to a mistranslation, or to a casual way of referring to Aristotle's term *politeía*.

(4) That the equivalence "constitution = any state form" is therefore not the older but indeed a recent loosening up of the concept, reflecting either the juridic illusion of attaining a "purified," universal depoliticized right, or reflecting the purpose of exploiting the word constitution as a trap word.

(5) That on both accounts it should be pointed out that either the term is used in its specific *garantiste* meaning, or it is a meaningless (and deceiving) duplicate of terms such as organization, structure, form, pattern, political system, and the like.

(6) That, according to this view, the variety of so-called "constitutions" of our time may be classified in three categories: real, nominal and facade.

(7) That the existence of nominal constitutions implies that either we abide by *garantisme*, or we can no longer draw a line between "constitution" and "constitutional government."

(8) That the political scientist, in particular, is responsible for ruling out insincere language, for two reasons: the general reason being that the language of the observer is required to improve (whenever necessary) the language of the observed; while the specific reason is that terminological housecleaning is all the more necessary whenever the political scientist is confronted with terminological distortions that are deliberately fostered with a view to deceiving the audience.

Speaking of political scientists, a final question should perhaps be raised, namely: why should we, *qua* political scientists, be concerned with the constitutional problem?

Actually, constitutionalism is not a traditional subject matter of political science. To the extent that political scientists have been concerned with it, they have either leaned on a previous legal training of the individual scholar, or they have shown a tendency to underplay the role and importance of constitutional checks as compared with social and political pluralistic checks.[34] In the first case it could be said that their treatment of the topic constitutionalism belongs to the "old" political science. In the second case it can be shown, I believe, that the "new" political science is hardly equipped to discuss the problem at all. For one thing, political science is keen about informal processes, not about formal structures. In particular, the new generation of political scientists distrusts concepts having a high degree of abstraction (such as State), concentrates very much on elementary grass roots units (such as groups), and has developed a keen feeling for dynamics, for change, for "something doing," to use Bentley's telling expression. Now, clearly, from this platform constitutions appear to be: (i) the juridical counterpart and support of the abstract entity, "the State"; (ii) certainly not the "raw material" of politics; and (iii) the expression *par excellence* of a typically static view of the political process. (The foregoing are, of course, very broad and very rough generalizations.)

If these underlying premises are duly weighed, the present-day mood of skepticism toward the efficacy of constitutional devices and mechanisms was only to be expected. However, where is the error? In the purview of the observer, or in the constitutional solution? All in all, my feeling is that contemporary political science has not found, as yet, the strategic juncture in which and from which it can make a positive contribution to the understanding of constitutionalism. My own tentative suggestion is that, perhaps, this strategic point is to be found in the "role theory" approach,[35] that is, by examining the constitutional solution as a pre-

[34] This is not to deny that pluralism is a requisite condition for the proper working of constitutional systems. My own view, however, is that the relationship between societal pluralism and constitutional patterns of behavior is a two-way relationship, at least in the sense that it is very important, for pluralism, to have the constitution on its side.

[35] I have in mind, *e.g.*, the approach devised by Heinz Eulau and associates in a related subject. *Cf.* Wahlke, Eulau, Buchanan, Ferguson, *The Legislative System—Explorations in Legislative Behavior* (New York, 1962).

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ordained, binding technique of *role-enforcement* (in its difference from a spontaneous role-taking.)

Within the limits of a preliminary perusal, I cannot push the argument further. I leave it as an open suggestion for discussion that the query, "What is the role of a constitution in the political system?" could perhaps be fruitfully approached from the following angle: what is the impact, or the role, of a constitution *vis-à-vis* the role-taking of the power holders? That is, does it help to enforce, and if so to what extent, a desired "role performance" upon the persons in office?

Whatever the merit of this suggestion, I do feel that political scientists should go back with a fresh look to the vital issues that constitutional lawyers have been neglecting. For the experience of the last 30–40 years has shown, particularly in Italy and in Germany, that when a political problem—and constitutionalism is, inescapably, a juridical solution of a political problem—is depoliticized, the real consequences of taking the juridical "neutral" attitude are (no matter how unwittingly) political. I mean that when the time of trial comes, one discovers that what the "pure" jurists have really been doing—under the shield of their juridical indifference to meta-juridical matters—was to pave the way for allowing unscrupulous politicians to make a discretionary use of power under the camouflage of a good word. Politics cannot be taken out of politics, so to speak.

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